



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 17 2004

DOT-E 14056

EXPIRATION DATE: April 30, 2005

1. GRANTEE: Columbia Helicopters, Inc.
Portland, OR
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of certain Class 3 materials with a flash point over 100°F in non-DOT specification portable tanks exceeding the weight limitations authorized for shipment by cargo aircraft. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101(9B) in that the quantity limitation for transportation by cargo aircraft is exceeded and § 172.302(c) in that marking the portable tanks with the exemption number is waived.
5. BASIS: This emergency exemption is based on the application of Columbia Helicopters, Inc., dated December 15, 2004, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons and property.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Diesel Fuel	3	UN1202	III
Gas Oil	3	UN1202	III

7. SAFETY CONTROL MEASURES: PACKAGING - Prescribed packagings are non-DOT specification portable tanks with a capacity of 2,250 gallons as authorized by the HMR for the materials identified in paragraph 6. Compliance with 49 CFR 173.24 is required.

8. SPECIAL PROVISIONS:

a. Each portable tank must be properly secured as a jettisonable-external sling load. It must be secured for transport by means of lifting line, rigging and shackles having a safety factor of at least four times the maximum load.

b. The marking requirement in § 172.302(c) is waived.

c. Transportation is authorized only for remote locations within the State of Alaska. The flight path must avoid heavily populated areas.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo aircraft used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

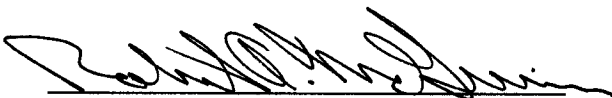
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: KFW/dl